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|    |                                                                         | <p>Mortgage Loan Trust 1 (Plaintiff) for leave to file a first amended complaint is <b>GRANTED</b>. (<i>Code Civ. Proc.</i>, § 473(a)(1).)</p> <p>On June 11, 2026, this motion came on for hearing and was continued to July 2, 2026, because although Defendant apparently served an opposition on Plaintiff, the opposition was not filed with the Court. The Court ordered Defendant to file the opposition within 7 days. Notice of the Court's order was duly served on Defendant. (See ROA 64.) No opposition was timely filed with the Court.</p> <p>Courts are bound to apply a policy of great liberality in permitting amendments to the complaint "at any stage of the proceedings, up to and including trial," absent prejudice to the adverse party. (<i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.)</p> <p>Plaintiff has shown the interests of justice would be served by allowing the amendment as Plaintiff merely seeks to add an alternative cause of action arising from the same set of facts and circumstances pled in the original complaint. There appears to be no prejudice that would result from the amendment as trial is not set to commence until February 2027.</p> <p>Accordingly, the motion is <b>GRANTED</b>.</p> <p><i>The First Amended Complaint is to be separately filed within 7 days of the date of this order.</i></p>                                                                                                                                                                                                                                |
| 7. | Maixner v. Julie G. Duquette, M.D., A Medical Corporation<br>25-1493273 | <p>Plaintiff Susan Maixner's ("Plaintiff") unopposed Motion for Terminating and Monetary Sanctions ("Motion") against defendants Julie G. Duquette, M.D., and Julie G. Duquette, M.D. ("Defendants" together) is <b>GRANTED</b>.</p> <p>The court previously ordered Defendants to serve initial responses to sets one of form interrogatories and requests for production on 04/08/26; monetary sanctions were also issued. (ROA 70.) Despite multiple attempts by Plaintiff's counsel to obtain responses from Defendants, nothing has been served since the discovery requests were initially propounded and Defendants and their counsel have apparently refused to communicate with Plaintiff. This is in addition to Defendants refusing to comply with two prior court orders to participate in preparing a joint letter brief regarding the issues related to the discovery requests. (ROA 55, 64.) Defendants' prior refusal to participate and appear resulted in an Order to Show Cause re: Monetary Sanctions Against Defense Counsel for Failure to Comply with Court Order (ROA 64, 70), which Defendants did not appear at, and which resulted in additional monetary sanctions against defense counsel. Defendants have not made any appearance in this action since 12/05/25 and have apparently refused to communicate with Plaintiff regarding issues in this lawsuit.</p> <p>The court finds Defendant has abused the discovery process by failing to respond to authorized methods of discovery and by disobeying direct court orders. (<i>Civ. Proc. Code</i> §§ 2023.010 and 2023.030.)</p> |

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|    |                                                                    | <p>Although discovery sanctions are typically meted out sparingly or in an incremental approach (<i>Dep't of Forestry &amp; Fire Prot. v. Howell</i> (2017) 18 Cal. App. 5th 154, 191-92), the court has considered the totality of the circumstances in this instance and finds the actions of Defendants and their counsel are willful, to the detriment of Plaintiff, and that multiple informal attempts to resolve the issues were not successful due to Defendants' refusal to respond or participate. (<i>Los Defensores, Inc. v. Gomez</i> (2014) 223 Cal. App. 4th 377, 390.) In addition to the above, as prior monetary sanctions and the responses to requests for admission being deemed as admitted did not dissuade Defendants from additional discovery abuses, the court finds the request for terminating sanctions to be appropriate here.</p> <p>Plaintiff's request the court strike Defendant's answer is <b>GRANTED</b>.</p> <p>Plaintiff's request for additional monetary sanctions against both Defendants and their counsel of record is also granted in the reduced and reasonable amount of \$2,077.40 (\$500/hr. x 4 hrs. + \$60 fee + \$17.40 mileage) as the motion itself was not particularly complicated. Monetary sanctions are due within 15 days of written notice of the ruling.</p> <p><b>The court orders that Defendant's answer is hereby struck.</b></p> <p>Plaintiff's counsel is ordered to give notice of the ruling, and to prepare a request for entry of default which the court will sign upon receipt.</p> <p><i>Plaintiff's counsel to give notice.</i></p> |
| 8. | Tapia v. The Regents of the University of California<br>24-1446222 | <p>Before the Court is the continued hearing on the Motion for Reconsideration and Relief from Terminating Sanctions, etc., filed on 3/17/26 by Plaintiff Melissa Tapia in her individual capacity and in her capacity as decedent Luis Recinos' successor-in-interest ("Plaintiff").</p> <p>The Motion is effectively a motion for relief under <i>C.C.P. § 473(b)</i>, based upon an attorney declaration of fault regarding discovery violations that resulted in terminating sanctions. In that context, the application for mandatory relief would be in proper form if it demonstrated that verified discovery responses had been served, for all of the outstanding discovery. (See <i>Rodriguez v. Brill</i> (2015) 234 Cal.App.4th 715, 729.)</p> <p>Plaintiff's counsel asserted in the Motion only that compliance was anticipated. (ROA 225, Smith Decl., ¶ 19.) Although it appears that Plaintiff then belatedly submitted some responses, her counsel failed to file any reply or declaration demonstrating that this had occurred. Both sides failed to inform the Court that any responses had belatedly been provided.</p> <p>In light of claims made by Plaintiff's counsel at the prior hearing, the Motion was continued to 7/2/26. Counsel for both sides were directed to file a Joint Statement by 6/26/26, along with any "individual declarations." The "Joint Statement" filed on 6/26/26 addresses what Defendant Regents of the University of California perceives to be</p>                                                                                                        |